



File No.: EXP202300091

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On July 7, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in the procedure for the exercise of rights of file number EXP202206666, followed against PUNTO ROJO LIBROS, S.L. (hereinafter, the complained party).

In this file, it is recorded that the complaining party exercised their right of access to the personal data concerning them, requesting information about the origin of their data, without this request being duly addressed, issuing a resolution that required the following:

FIRST: TO ESTIMATE the complaint filed by A.A.A. and to urge PUNTO ROJO LIBROS, S.L., with NIF B91388686, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the exercised right of Access or a motivated denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with article 58.2 of the GDPR.

SECOND: The resolution of the procedure for the exercise of rights was duly notified on July 11, 2022, to the complained party, granting them a period of 10 working days to address the exercise of the right of access, as evidenced in the file.

THIRD: This Agency received a document, registered on July 18, 2022, with registration number REGAGE22e00030959582, in which the complained party communicates that in their personal database only the email of the complaining party is recorded, and therefore no further information or personal data attributed to that party is available.

FOURTH: On July 18, 2022, a document was registered in this Agency, with number REGAGE22e00031014217, submitted by the complaining party, in which they provide the email with which the complained party informs them that in the personal database of this entity only the email of the complaining party is recorded, failing to respond to their initial request to know the origin of their data.

FIFTH: This Agency proceeded to again require the complained party to send to the complaining party, within five working days, a certification of compliance with the referenced resolution in the terms described therein and, in the

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Within a period of ten business days, it shall notify this Agency of the measures adopted in compliance with this requirement, which was acknowledged by the responsible party on September 8, 2022, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On September 20, 2022, and registered under number REGAGE22e00041146471, a new document was received in which the respondent states that they have taken the appropriate technical and organizational measures for the deletion of the claimant's email and their contact data, of which the claimant has been expressly and reliably notified.

SEVENTH: On September 23, 2022, a document was registered in this Agency, under number REGAGE22e00041868895, submitted by the claimant in which they provide the email with which the respondent communicates that they have deleted their email, again omitting to respond to their initial request to know the origin of their data.

EIGHTH: This Agency proceeded to request the respondent again in the same manner as before. This

new request was acknowledged by the responsible party on October 26, 2022, as evidenced by the acknowledgment of receipt in the file.

NINTH: On November 10, 2022, and registered under number REGAGE22e00050933619, the respondent submitted a document reiterating that they have taken the appropriate technical and organizational measures for the deletion of the claimant's email and their contact data, of which the claimant has been expressly and reliably notified.

TENTH: On November 13, 2022, a document was registered in this Agency, under number REGAGE22e00051378274, submitted by the claimant in which they state that their request for access has not been satisfactorily answered since the respondent informs them that they have deleted their email, but again omits to respond to their initial request to know the origin of their data.

ELEVENTH: After the period of the initial resolution and the subsequent requests, the respondent has not sent a response to this Agency that proves they have satisfactorily answered the claimant's access request by not providing information about the origin of the processed data (their email address).

TWELFTH: Against the aforementioned resolution, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

THIRTEENTH: According to the report obtained from the AXESOR tool, the entity PUNTO ROJO LIBROS, S.L. is an SME (Microenterprise) established in 2004, with a business volume of 770,912 euros in 2020.

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FOURTEENTH: On February 1, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

FIFTEENTH: The aforementioned initiation agreement was received by the respondent on February 6, 2023, as evidenced by the acknowledgment of receipt in the file.

SIXTEENTH: On February 22, 2023, with entry registration number REGAGE23e00011005999, the respondent submitted a written statement of allegations regarding the initiation agreement, in which it states that the contact address of the complainant was obtained from the database of the publisher Gunis, of which the complainant is a client. It adds that this publisher, of which the respondent is also the owner, belongs to the same publishing group while maintaining different tax identification codes for operational reasons, and that all legal matters, which appear in both the cookie policies and the legal notices and privacy policies of both websites, comply with current law. To this end, it indicates that it has engaged the services of an external company to keep all privacy policies updated, and that these data sharing policies are included both on its website and in the publishing contracts it signs, in general, with all its authors.

SEVENTEENTH: On March 9, 2023, a resolution proposal was made, in which it was proposed that the Director of this Agency impose a fine of 1,000 euros on the respondent for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, ordering once again that the respondent send the complainant information about the origin of their data and communicate the actions taken to this Agency. This resolution proposal was duly notified to the respondent, and no allegations have been submitted against it.

In view of all the actions taken, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The resolution of the rights exercise procedure and the requirements for compliance indicated in the first, second, fifth, and eighth recitals were notified electronically, in accordance with the provisions of Article 43 of the LPACAP. Said resolution became firm and enforceable due to the expiration of the deadlines provided for the filing of the resources indicated therein.

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SECOND: The respondent has not sent any response to this Agency that proves compliance with the resolution before the initiation agreement of the present sanctioning procedure was issued.

THIRD: The notification of the initiation agreement of the present sanctioning procedure was received by the respondent on February 6, 2023.

FOURTH: The respondent has submitted allegations to the initiation agreement of this sanctioning procedure, as described in the sixteenth recital.

FIFTH: The resolution proposal was received by the responsible party on March 16, 2023.

SIXTH: The respondent has not submitted allegations to the resolution proposal of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the respondent, the following should be noted.

The favorable resolution of the access rights exercise procedure was notified on July 11, 2022. Once the deadline granted for compliance had elapsed, compliance was requested again on two occasions, and finally, the initiation of the present sanctioning procedure was agreed upon on February 1, 2023, without the respondent having submitted any response to this Agency that proved compliance with what was agreed upon in the aforementioned resolution, but only informing of the deletion of the complainant's email.

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The communication regarding the origin of the data of the complainant, during the instruction of this sanctioning procedure, does not affect the existence of the proven facts constituting an infringement, as this information was not provided to this Agency until the submission of the allegations in the present procedure. Additionally, it has not been established that it was communicated to the complainant.

III

Unfulfilled Obligation

In accordance with the available evidence, it is considered that the respondent has failed to comply

with the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame;"

IV

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this Article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

V

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 1,000 euros.

VI

Adoption of Measures

This Agency agrees to impose on the controller the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time frame..."

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on PUNTO ROJO LIBROS, S.L., with NIF B91388686, for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of 1,000.00 euros (ONE THOUSAND euros).

SECOND: TO REQUIRE PUNTO ROJO LIBROS, S.L., with NIF B91388686, to send the complainant the information regarding the origin of their data within five working days from the notification of this Resolution. Furthermore, the actions taken must be communicated to this Agency within ten working days from said notification.

THIRD: TO NOTIFY this resolution to PUNTO ROJO LIBROS, S.L.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution

becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

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CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, it will proceed to its collection in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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